

25STCP04049 25STCP04049

County: los-angeles

Division: Civil Law and Motion

Department: 834

Hearing date: 2026-07-07

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Case Number: 25STCP04049 Hearing Date: July 7, 2026 Dept: 834

Superior Court of California

County of Los Angeles

Department 834

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JERRY CALLOWAY JR.

Petitioner(s),

vs.

STATE

HEARINGS DIVISION DEPARTMENT OF SOCIAL SERVICES,

Respondent(s).

Case No.:

25STCP04049

Hearing Date:

July 7, 2026

[TENTATIVE] RULING

ON PETITION FOR WRIT OF MANDATE

Petitioner Jerry Calloway ("Petitioner") petitions for a writ of mandate against respondent Department of Rehabilitation ("Respondent") directing it to set aside its decisions and conduct proceedings in compliance with the law.

The petition for writ of mandate is denied.

I.

Procedural History

On October 17, 2025, Petitioner filed his petition. On November 26, 2025, Petitioner filed his first amended petition. On December 23, 2025, Petitioner filed his second amended petition. A proof of service filed January 16, 2026 shows Petitioner served the second amended petition on Respondent by personal service on January 6, 2026.

On February 2, 2026, Respondent filed a general denial and affirmative defenses. On February 11, 2026, Petitioner filed a "Rebuttal to Defendant's Response" responding to Respondent's affirmative defenses.

On March 19, 2026, the court ordered Petitioner to file and serve his opening brief no later than April 16, 2026. To date, there is no opening brief on file.

On May 28, 2026, Respondent filed its opposition. On June 23, 2026, the Respondent filed a notice of lodging for the administrative record.

II.

Discussion

When a petitioner challenges an administrative decision as unsupported by substantial evidence in light of the record as a whole, it is the petitioner's burden to demonstrate that the administrative record does not contain sufficient evidence to support the agency's decision. (State Water Resources Control Board Cases (2006) 136 Cal.App.4th 674, 749.) Petitioner is obligated to lay out the evidence favorable to the other side and show why it is lacking. "Failure to do so is fatal" to any substantial evidence challenge and "is deemed a concession that the evidence supports the findings."

(Defend the Bay v. City of Irvine (2004) 119 Cal.App.4th 1261, 1266.)

An opening brief is required in every mandamus case. (CRC 3.1113(d); LASC 3.231(i).)

Petitioner failed to file an opening brief. Without an opening brief, Petitioner cannot show entitlement to relief.

III.

Conclusion

The petition for administrative mandamus is DENIED. The court will sign a dismissal with prejudice as a judgment under Code of Civil Procedure § 581(d).

Date: July 7, 2026

HON. TIANA J. MURILLO

PLEASE TAKE NOTICE:

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Parties

are encouraged to meet and confer after reading this tentative ruling to see if they can reach an agreement.

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If

a party intends to submit on this tentative ruling, the party may send an email to the court at with the Subject line "SUBMIT" followed by the case number. The body of the email must include the hearing date and time, counsel's contact information, and the identity of the party submitting.

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Unless

all parties submit by email to this tentative ruling, the parties should arrange to appear remotely (encouraged) or in person for oral argument. You should assume that others may appear at the hearing to argue.

If the parties neither submit nor appear at hearing,
the court may take the matter off calendar or adopt the tentative ruling as the
order of the court. After the court has issued a tentative